JOHN MUKORERA
versus
DENNIS NGONIDZASHE MNENSA
and
BLESSED MNENSA
and
THE PDBP FAMILY TRUST
and
THE SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 23 & 26 January 2026

Urgent Chamber Application

M S Nyanoka, for the applicant
G Maromo, for the 1st to 3rd respondents
No appearance for the 4th respondent

DEMBURE J:

INTRODUCTION

The hallmark of the system of administration of justice is that litigants must always be candid with the court. Relief cannot be granted to those who are guilty of a lack of probity in their dealings with the court. Any attempts to mislead the court must be frowned upon. Such deplorable conduct invites an abominable award of costs as a mark of the court's displeasure. This matter is one such case involving unworthy dishonest conduct that the courts have strongly condemned. It is settled law that the courts must discourage urgent applications which are characterised by *mala fides* or dishonesty either through withholding material information or making untruthful statements in the founding affidavit: See *Anabus Services (Pvt) Ltd* v *Ministry of Health & Ors* 2003 (1) ZLR 347 (H).

This is an urgent chamber application for stay of execution. The applicant seeks that the enforcement of the default judgment entered by this court against him in favour of the first to third respondents in Case No. HCH 3707/23 be stayed pending the determination of his application for rescission of default judgment in Case No. HCH 207/26. In particular, the terms of the interim and final relief sought are as follows:

> "**TERMS OF FINAL ORDER SOUGHT**
> That you show cause to the Honourable Court why a final order should not be made in the following terms: -
> 1. The Provisional Order issued in this matter on _____ January 2026 be and is hereby confirmed.
> 2. The execution, implementation and enforcement of the order issued by this court (*per* DEMBURE J) in case number HCH 3707/23 on 14th of January 2026 be and is hereby stayed pending the determination of an Application for Rescission of Default judgment in HCH 207/26.
> 3. The 1st – 3rd Respondents shall bear the costs of this Application.
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> **INTERIM RELIEF GRANTED**
> 1. Pending the determination of this present application, the 4th Respondent is ordered to stay execution of the default judgment granted in HCH 3707/23."

FACTUAL BACKGROUND

The parties' dispute is centred on a certain piece of land situate in the District of Salisbury called stand 634 Glen Lorn Township 17 of Lot 41 of Glen Lorne, measuring 4691 square metres, also known as number 2 Worplestone Way, Glen Lorne (*"the property"*).

It is common cause that the property is registered in the names of the first, second and third respondents jointly in undivided shares. The property was acquired by the late Precious Nyakunjara, who held title thereof by virtue of a deed of transfer number 5425/2007. In 2009, she donated, *inter vivos*, an undivided two-thirds share of the property jointly to her children, namely the first and second respondents under deed of transfer number 2736/2009. She further donated, *inter vivos*, the remaining one-third share in the property in 2020 to the third respondent under deed of transfer number 304/2020. The third respondent is a discretionary family trust whose trustees are also the first and second respondents. The said respondents are also the beneficiaries of the Trust together with the applicant's child, Prosper Mukorera, who is still a minor. They are all children of the late Precious Nyakunjara, but it is only the minor whose father is the applicant.

It was not in dispute that the applicant and his minor child are in occupation of the property.

The first to third respondents instituted motion proceedings on 6 June 2023 in Case No. HCH 3707/23 seeking the remedy of *rei vindicatio*. In particular, they sought the eviction of the applicant and all those claiming the right of occupation through him from the property. The applicant opposed the application. On 20 June 2023, this court made a finding that there were material disputes of fact incapable of resolution without hearing *viva voce* evidence and referred the matter for trial. The said court order reads as follows:

> "1. The matter is referred for trial.
> 2. The founding affidavit will stand as the summons.
> 3. The notice of opposition becomes the appearance to defend.
> 4. The applicants shall file their declaration within such period as is allowed under the rules of court to be reckoned from the date this order is dated on the IECMS by the Registrar.
> 5. Thereafter the matter shall proceed in terms of the rules.
> 6. Costs shall be in the cause."

The parties subsequently filed their pleadings as directed, and the matter was set down before MUREMBA J for a Pre-Trial Conference (*"PTC"*). On 3 October 2025, the matter was referred to trial on the following two issues:

> "1. Whether the Defendant made necessary and useful improvements on the property in issue? if so, to what extent?
> 2. Whether the Defendant is entitled to resist his eviction on the basis of the alleged improvements?"

It is apparent from the joint PTC minute filed of record that the *onus* was on the applicant on both issues. The main matter in Case No. HCH 3707/23 was set down for trial before me on 26 November 2025. Due to other court commitments, the trial did not commence. The matter was subsequently postponed to 13 January 2026. On 13 January 2026, the applicant, through his erstwhile legal practitioner, Mr *S Kuchena* made an oral application for the postponement of the matter *sine die* pending the determination of an application for the re-opening and amendment of pleadings filed by the applicant on the previous day, 12 January 2026, in Case No. HCH 108/26. The application was opposed by the plaintiffs therein (the first to third respondents in this case). After hearing submissions from the parties' legal practitioners, the court found the application to be without merit and a delaying tactic, and consequently dismissed it.

While Mr *Kuchena*, during his submissions, had indicated to the court that he had no instructions to proceed to trial if the application was not successful, he nonetheless proceeded to

open the defendant's case. The applicant gave his evidence and was subjected to cross-examination. The proceedings were adjourned to 14 January 2026 at 14:15 hours while the applicant was still under cross-examination. It is important to note that the deferment of the proceedings to the next day and at 14:15 hours was agreed upon by both Mr *Maromo*, who appeared for the plaintiffs and Mr *Kuchena*, who represented the applicant (the defendant in that matter). The rescheduling of the trial to the afternoon of 14 January 2026 was meant to accommodate the legal practitioners' other midmorning court sessions, which they all claimed to be engaged in.

When the hearing resumed in the afternoon on 14 January 2026, around 14:33 hours, the applicant advised the court that his lawyer had a matter at the Rotten Row Court that he had finished attending and was on his way to the court. He further said that his lawyer had informed him to inform the judge's clerk. He specifically requested about thirty minutes to allow his legal practitioner to arrive at the court and proceed with the matter. The court acceded to his request, and the proceedings were deferred to about 15:00 hours that day. However, when the court session resumed, the applicant's legal practitioner did not show up despite the extended period afforded by the court. The plaintiff did not seek to terminate his legal practitioner's mandate to proceed on his own or to seek more time to find another legal practitioner. Since there was no renunciation of agency, the court held him to be in technical default.

Consequently, the court entered a default judgment against the applicant as sought in the summons and declaration. The default judgment reads as follows:

> "1. The defendant (respondent) and all those deriving their right of occupation through him shall vacate Number 2 Worplestone Way, Glen Lorne, Harare forthwith.
> 2. If the defendant fails to comply with paragraph 1 of this order within seven days of the date of this order, the Sheriff of Zimbabwe or his lawful deputy be and is hereby authorised to cause the eviction of all persons mentioned in paragraph 1 above in accordance with the law.
> 3. The defendant shall pay the costs of suit on a legal practitioner and client scale."

On 16 January 2026, the applicant filed an application for rescission of the above default judgment in Case No. HCH 207/26. The application is still pending. He subsequently lodged this application about four days later, on 20 January 2026.

In both the notice of motion and the founding affidavit, the applicant alleged that his son, Prosper Mukorera, a minor, was a part-owner of the property and, if stay was not granted, would

also be evicted from the only home he had known since birth. This position was also reiterated in the certificate of urgency.

The applicant further averred that the default judgment was improper, and it would be unjust that he and the minor child be evicted from their only home without the matter being heard on the merits. He asserted that he had satisfied all the requirements of an application for stay of execution. In particular, it was pleaded that he had good prospects of success in the application for rescission of judgment. It was averred that he had a reasonable explanation for the default, that his application for rescission was genuine and that his defence on the merits carried some prospects of success.

The first to the third respondents strenuously opposed the application. They raised points *in limine* that the application was fatally defective for non-compliance with rule 60(1); that there was non-disclosure of material facts, that the certificate of urgency was invalid for want of proper consideration of the case by the certifying legal practitioner and that the application was founded on falsehoods and an attempt to mislead the court.

On the merits, the respondents contended that the application had no merit and ought to be dismissed with punitive costs. They argued that the applicant had failed to give a reasonable explanation, as his explanation was founded on lies and that he failed to attach a supporting affidavit from his erstwhile legal practitioners as demanded by the law. It was also contended that the application was not *bona fide* but part of the applicant's delaying tactics and that, on the merits, his defence, which was solely centred on the alleged improvements, was hopeless. They further averred that it was not true that the minor is a part-owner of the property. They maintained he had no right whatsoever to the property. They further argued that the applicant seeks to stay at their property for free to their prejudice.

At the hearing, Mr *Maromo* abandoned the points *in limine,* and the parties proceeded to argue the matter on the merits.

THE ISSUE FOR DETERMINATION

WHETHER THE REQUIREMENTS FOR STAY OF EXECUTION HAD BEEN SATISFIED

SUBMISSIONS FOR THE APPLICANT

Mr *Nyanoka*, submitted that this was an urgent chamber application for stay of execution of the default judgment that I granted in the matter HCH 3707/23 pending the determination and hearing of an application for rescission of default judgment filed under case number HCH 207/26. On the requirements for an application of this nature, he referred me to the case of *Mashamhanda* v *Bariadie Investments (Pvt) Ltd & Anor* SC 17/24. He argued that in that case, the court held that for the court to grant stay of execution, it must be satisfied that an injustice would result if the stay is not granted. Counsel also cited the case of *Jockstar Investments (Pvt) Ltd* v *Muzirwa* HH 29/24 in which this court dealt with a similar application as the present one. It was submitted that in exercise of its discretion of whether or not to stay execution pending an application for rescission of judgment the court considers several factors, which include the prospects of success in the intended application for rescission of judgment, the irreparable harm to the applicant if stay is not granted, the balance of hardship for the parties concerned, and any other special circumstances.

Counsel argued that the applicant has prospects of success in the matter HCH 207/26, which is an application for rescission of default judgment. On the requirements of an application for rescission of judgment, he referred me to the case of *Zinondo* v *CAFCA Ltd* SC 64/17. In that case, the Supreme Court held that the court must be satisfied that there is a good and sufficient cause to rescind the order. This was interpreted to mean three things: that there ought to be a reasonable explanation for the default, that the application for rescission is *bona fide* and that the applicant has a genuine defence on the merits, which carries with it some prospect of success.

It was submitted that the first requirement was satisfied in that the explanation given for the default was reasonable. He went on to state that the reason why the default judgment was granted was that the applicant's legal practitioner at the time, who has since been relieved of his duties, failed to appear in court on the day in question when the matter was supposed to continue for trial. He further stated that the applicant was present on the day in question. He argued that he appreciated the fact that in *Friendship* v *Cargo Carriers Ltd & Anor* SC 1/13, the Supreme Court stated that where the default or the reason for the failure to act is as a result of a legal practitioner, such legal practitioner ought to depose to a supporting affidavit confirming the veracity of the facts found within the founding affidavit. Counsel conceded that there was no

supporting affidavit from the applicant's erstwhile legal practitioner. He attempted to explain the omission, but I quickly reminded him that he could not lead evidence from the bar, as it was the applicant who ought to have explained why he did not attach the affidavit to his founding affidavit.

While counsel agreed that the conduct of the said legal practitioner was deplorable, he argued that the sins of the lawyer should not be visited on his client because of the importance or the effect of his failure to attend court on the day in question. Mr *Nyanoka* argued that the applicant was of the view that the explanation given was reasonable for all intents and purposes. On the applicant's explanation for the default, I referred counsel to para(s) 14 and 15 of his founding affidavit and queried that they do not reflect correctly what exactly transpired on 14 January 2026 at the hearing. In other words, my query was whether or not in these paragraphs the applicant was being candid with the court in respect of what transpired. Counsel admitted that the applicant was not being truthful when he made those averments.

Counsel further submitted that the second requirement of an application for rescission, whether or not the application itself is genuine, was satisfied. He argued that the application was genuine as the applicant filed the application just two days after the order was granted. He was merely seeking that the issues between himself and the respondents be determined on the merits to the finality.

It was also submitted that the third requirement, that there ought to be a good and genuine defence which carries some prospects of success, was also established. Counsel referred me to the case of *Muchakata* v *Netherburn Mine* 1996 (1) ZLR 153 (S), where the court held that a point of law can be raised at any time, even for the first time on appeal, so long as it does not prejudice the respondent, which prejudice cannot be remedied by an order of costs. Counsel admitted that the points of law he was raising were abandoned at the PTC before MUREMBA J, but nonetheless, he argued that the point could still be raised at this stage. He argued that the matter in Case No. HCH 3707/23 is between the first to third respondents and the applicant as a respondent alone. The application is silent on the applicant's son, Prosper Mukorera, who happens to be a beneficiary of the trust and a beneficiary of his deceased mother's estate. He submitted that the minor child's interests have not been represented throughout this matter, and

he faces eviction in the same manner as the applicant if this court does not grant this present application.

When the court queried whether the said minor owns the property as stated in the applicant's papers, counsel admitted that the averments that he is a part-owner of the property were false. He referred to s 81(2) of the Constitution and argued that the court must consider the best interests of the child. Reference was also made to the South African Constitutional Court of *S v M* 2008 (3) SA 232 (CC) at p 26, which further explained legal provisions on the best interests of the child. He also cited rule 61(2) of the High Court Rules, 2021, to buttress his argument. He argued that the matter concerns a minor, but the minor was not cited. The judgment of the court would not only affect the applicant, but it would also affect the minor. It was further submitted that the minor faces eviction without having been given the chance to be heard. He maintained that the minor has an interest in the property.

Counsel also submitted that the applicant has an improvement lien over the property. His position was that the applicant directly contributed to the modernisation, beautification, and upgrading of this immovable property from a single-storey house to a double-storey house. The court has accepted that a lien is an acceptable defence to a claim for eviction or *rei vindicatio*. See *City of Masingo v Zimbabwe Urban Council Workers Union & Ors* HMA 48/17. He argued that the court cannot assess the evidence the applicant gave at the stage when the default judgment was granted. While counsel accepted that no documents had been attached to substantiate the claim for improvements, he argued that there could not be a conclusive evaluation of the strength of the evidence given at this stage. See *NMB Bank v Formscarf (Pvt) Ltd & Ors* SC 31/22.

Mr *Nyanoka* went on to argue that it was common cause that the applicant would suffer irreparable harm if the stay was not granted. He argued that the applicant has a right to be heard, and if the execution was not stayed, the application for rescission would become moot or overtaken by events. Additionally, the applicant and his minor child, who has not been given a chance to be heard, even though he is a beneficiary of the third respondent, which is the trust, would be evicted. He also submitted that there is an impending eviction from a property which

the applicant has called home since 2006 and which has been the minor's home since birth. On the balance of convenience, he argued that it would favour the granting of the application.

SUBMISSIONS FOR THE FIRST TO THIRD RESPONDENTS

Mr *Maromo* submitted that during the court's exchanges with counsel for the applicant in respect of the contents of para(s) 14 and 15 of the founding affidavit, counsel made a concession that the contents of those paragraphs do not constitute the truth. In other words, he accepted that this was an application which was founded on positive lies and an attempt to deceive the court. He argued that this has consequences. The consequence was that the application should be dismissed based on that fact alone. Counsel submitted that this is the principle set out in *Matsika & Anor* v *Chingwena & Ors* SC 144/21. The court in that matter found that once it is proven that the application is founded on positive lies in an attempt to deceive the court, then this should really be the end of the matter, as that litigant would have proven to be unworthy and dishonest.

Counsel argued that once an applicant advances an explanation to the court and that explanation is a false explanation, the matter must come to an end because the applicant would have, by that conduct alone, non-suited himself. He argued that this was critical for two reasons, the first being that it demonstrated that the applicant had no prospects of success whatsoever in the application for rescission. This is because the application for rescission was founded on a positive lie. Similarly, the applicant approached the court in this matter to seek the exercise by the court of its discretion to stay the execution of the default judgment. In doing so, he had advanced an explanation and had conceded that that explanation was a false explanation. The discretion cannot be exercised on the basis of falsehoods. That false explanation was not an explanation at all and affects both matters, this present matter and the one for rescission. Reference was made to the case of *Global Horizon (Pvt) Ltd & Ors* v *FMC Finance (Pvt) Ltd* SC 36/23.

Counsel also submitted that the requirements for an application of this nature have been correctly stated by counsel for the applicant. He argued that the starting point was that the applicant must demonstrate that he has reasonable prospects of success in the application for rescission of default judgment. It was submitted that the applicant failed to satisfy the requirements. His sole defence pleaded was that he made improvements to the property. He

alleged that he made useful and necessary improvements. The applicant had given all his evidence in the main matter. At the end of his evidence, he had not even alleged the value of the improvements. In all the papers before the court, there is nowhere the applicant alleged the value of the improvements.

Mr *Maromo* further argued that the defence of improvements does not stop an eviction. A successful finding that the applicant actually improved the property does not entitle him to stay in the property indefinitely. All that it does is that it compels the court to issue a conditional eviction order. A conditional eviction is one which states that he is to be compensated for the improvements and thereafter evicted. Counsel referred me to the case of *Silonda* v *Nkomo* SC 6/22. In that case, the Supreme Court corrected a judgment of this court, which had not issued a conditional eviction upon a finding that the defendant in that matter had effected improvements. Counsel argued that whichever way one looks at it, the proceedings were still going to result in the eviction of the applicant. The only question would be whether the eviction should be accompanied by an order of compensation or not. The sole defence was, therefore, without merit.

In relation to the minor child, counsel argued that there was nothing before me to sustain the applicant's arguments. It was submitted that there was no evidence that he is a beneficiary of the third respondent. Even assuming that this minor child is a beneficiary of the third respondent, the third respondent is not the sole owner of this property. This property is owned by three parties. The majority of the property, that is, two thirds of the shares, is actually owned by the first and second respondents. This entitles the first and second respondents to occupation of the property. He also submitted that even if it was owned by the trust, the first and second respondents are actually the trustees, and it is trite law that the trust property is owned and administered by the trustees. It is the trustees who determine what must happen to the property. It was further argued that there was a desperate attempt to characterise this case as one which is pitted against a minor child. That attempt was incompetent both on the facts of the matter and on the law. This is a simple matter for the eviction of the applicant and all persons who claim their right of occupation through him. It does not matter whether the applicant has many children that he resides with him at the property. The law of rei *vindicatio* knows no equities. The property must be possessed by its owners at all times. That is a superior right created by law.

Counsel argued that the applicant will not be able to demonstrate that he has any prospect of success in the main matter. As for the explanation the applicant gives for the default, he argued that this was the same explanation that the applicant had conceded to be untrue. Generally, the applicant blames his legal practitioner. He calls him his counsel of choice in the application before the court. It was argued that the applicant had not sought to distance himself from the conduct of his counsel of choice. Given the applicant and his legal practitioners' conduct on the preceding day, it cannot be ruled out that they colluded for him not to attend court.

It was also argued that the requirement for an explanation from the legal practitioner arises by operation of law. Reference was also made to the case of *United Refineries (Pvt) Ltd* v *Mining Industry Pension Fund* SC 63/14. In that case, the Supreme Court said that once blame for non-compliance with the rules of court or for any conduct is placed on a legal practitioner, there must be an affidavit from that legal practitioner. The purpose of the affidavit is twofold, firstly to confirm that indeed the legal practitioner acted contrary to the instructions that he had from the applicant and secondly, to enable the court to understand the full circumstances surrounding the default by the legal practitioner.

Mr *Maromo* further submitted that the eviction arises from a decision of the court, and the applicant was never denied audience. He was there. He was given all the facilities to defend himself. His legal practitioner defaulted. He had the option of terminating that legal practitioner's mandate. He did not. He stuck with him. He argued, therefore, that carrying the judgment into execution does not in itself bring about irreparable harm to the applicant. Counsel argued that the balance of hardships actually favours the carrying into execution of the judgment. The best that can still happen, even if allowed to defend the proceedings, is that he will still be evicted, subject to compensation for what he would have proved. The matter cannot be remitted simply for the issue of compensation for improvements, as the applicant did not make a counterclaim. Counsel further submitted that the applicant was not claiming any other right that would entitle him to remain in the property other than the right to be compensated. It was submitted that the applicant is in occupation of the respondents' property, which he admits is owned by the respondents, and he is not paying rent for his occupation. He was not

compensating the respondents in any manner. He argued that this deprivation of ownership was a cruel one.

It was submitted that the present application lacked merit and must be dismissed with costs on a punitive scale. Counsel argued that the attempt to misrepresent what actually transpired in court constitutes conduct that warrants a punitive costs order. Luckily, the matter fell into the same judge who appreciated what actually transpired at the hearing. He argued that a message must be sent that a party cannot approach the court and lie to it, and in the same breath seeks relief from the court. This conduct deserves to be censored, and the censor must be the only manner that the court can express its displeasure.

THE APPLICANT'S REPLYING SUBMISSIONS

Mr *Nyanoka* submitted that it was not correct that the applicant did not allude to any value of the improvements he effected. He referred me to para 4 of the defendant's plea at p 88 of the record, where there was mention of the sum of US$38,000. He further submitted that, given the circumstances of this case, costs on a higher scale were not warranted. Counsel argued that it was not that there was an insistence on the alleged misrepresentations. He further submitted that, as already explained, he was not the legal practitioner who was representing the applicant in the previous matter. That the unfortunate thing in this matter was that there had been prior instances whereby the former legal practitioner tried to delay the trial by instituting an application to open the pleadings after *litis contestatio*. He pleaded that the actions of the former legal practitioner ought not to be visited upon the applicant, and if the matter is not decided in his favour, that costs be granted on the ordinary scale.

THE LAW

This court has inherent jurisdiction to control its own processes. The court has a discretion to either grant or refuse an application for stay of execution. The discretion must be judicially exercised, taking into account well-established factors. A stay of execution is not granted for the mere asking. It would only be granted on the basis of real and substantial justice. In other words, a stay would be granted where it would not be in the interests of justice for the respondent to immediately enjoy the "fruits" of the judgment granted in his or her favour. The

requirements for stay of execution were restated in *Mashamhanda* v *Bariadie Investments (Pvt) Ltd & Anor* (*supra*) at p 20 para 20, where BHUNU JA said:

> "The requirements for an application of stay of execution were set out in *Cohen* v *Cohen* 1979 RLR 184. In that case the court held that, for the court to grant stay of execution it must be satisfied that an injustice would result if stay was not granted. See also *Chibanda* v *King* (1) 1983 ZLR 116. In the words of MAFUSIRE J in *Reef Mining (Pvt) Ltd & Another* v *The Sheriff* HH – 163 – 15, "it would mean justice would turn on its head if stay was not granted"."

When faced with a similar application as the one before me, MUCHAWA J in *Jockstar Investments (Pvt) Ltd* v *Muzirwa* (*supra*) at p 3, had this to say on what the court must consider for stay of execution:

> "In the exercise of its discretion of whether to stay execution pending an application for rescission of judgment, the court looks at several factors which include the prospects of success in the intended application for rescission of judgment, the irreparable harm to the applicant if stay is not granted, the balance of hardship for the parties concerned and any other special circumstances. See *Damson* v *Dzipange & Anor* HH 830/22."

APPLICATION OF THE LAW TO THE FACTS

I must first determine whether the applicant has prospects of success in the application for rescission of default judgment in Case No. HCH 207/26. I will, therefore, consider the requirements for an application for rescission of judgment filed in terms of rule 27(1) of the High Court Rules, 2021. The requirements for an application for rescission were affirmed in *Zinondo* v *CAFCA Ltd* (*supra*) at p 4, where GWAUNZA JA (as she then was) said:

> "In an application for rescission of a default judgment the court must be satisfied that there is good and sufficient cause to rescind the order. In *Makoni* v *CBZ Bank Limited* HH-357-16, CHITAKUNYE J quoted the case of *Stockil* v *Griffiths* 1992 (1) ZLR 172 (S) at 173D-F wherein GUBBAY CJ aptly noted that: -
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> > "The factors which a court will take into account in determining whether an applicant for rescission has discharged the onus of proving "good and sufficient cause", as required to be shown by Rule 63 of the High Court of Zimbabwe Rules 1971, are well established. They have been discussed and applied in many decided cases in this country. See for instance, *Barclays Bank of Zimbabwe Ltd v CC International (Pvt) Ltd* S-16-86 (not reported); *Roland and Another* v *McDonnell* 1986 (2) ZLR 216(S) at 226E-H; *Songore* v *Olivine Industries (Pvt) Ltd* 1988(2) ZLR210 (S) at 211C-F. They are: (i) the reasonableness of the applicant's explanation for the default ;(ii) the *bona fides* of the application to rescind the judgement; and (iii) the *bona fides* of the defence on the merits of the case which carries some prospect of success. These factors must be considered not only individually but in conjunction with one another and with the application as a whole."

The applicant's account of what happened leading to the default judgment is a material consideration in an application of this nature. The reasonableness of the explanation for the default can only be assessed from a full and honest explanation. It is trite that when considering an application of this nature, whether *ex parte* or not, the court distaste litigants or their legal practitioners who not only withhold material information from the court but also make untruthful statements in the founding affidavit. The applicant must take the court into his confidence and give a full and honest account of his default for the court to properly exercise its discretion. Thus, NDOU J in *Anabus Services (Pvt) Ltd* v *Ministry of Health & Ors* (*supra*) put this position succinctly as follows:

> "**The Courts should, in my view, discourage urgent applications, whether *ex parte* or not, which are characterised by material non-disclosures, *mala fides*, or dishonesty**. Depending on the circumstances of the case, the Court may make adverse or punitive orders as a seal of disapproval of *mala fides* or dishonesty on the part of litigants. In this case**, the applicant attempted to mislead the court by** not only withholding material information but by also **making untruthful statements in the founding affidavit**. The applicant's non-disclosure related to the question of urgency. In circumstances, I find that the application is not urgent and dismissed the application on that basis…."
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> **Courts have no capacity to reward dishonesty on the part of litigants**… The issue of urgency can never be pinned on or founded upon incomplete disclosure. My view is that a matter ceases to be urgent if it is founded upon deliberate misrepresentation or the holding back of vital information…
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> The point must be emphasized that legal practitioners are officers of the court. They have a concomitant duty to both the Court and to their clients." (*my emphasis*)

In seeking to satisfy the requirements for stay of execution, in particular when seeking to explain the default, the applicant in para(s) 14 and 15 stated as follows:

> "14. On the day in question, my legal practitioner of choice was not present, he wasn't there when the court sat and as such **the court gave me some time to find my legal practitioner so that the matter could proceed**.
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> 15. **I couldn't locate the same** and when the court sat again, the respondent's legal practitioner applied for a default judgment in the absence of my legal practitioner, which was then granted by this court. I attach the default judgment order as Annexure B."

I happen to be the judge who presided over the trial, and the record of proceedings clearly established what happened on that day. The applicant's statements in these paragraphs are not only untruthful but also fail to give a full, candid account of what happened. The correct position is that it was the applicant who informed the court that his legal practitioner was at Rotten Row

court and had finalised his case there and was on his way. He also stated that his legal practitioner advised him to go and see my clerk to inform me of the delay. It was not that the applicant asked for time to find his legal practitioner, as if he did not know where he was.

The record will also further show that he asked for about 30 minutes to allow his legal practitioner to arrive for the court session. The court session was adjourned until 15:00 hours that day for that purpose. When the court session resumed, his legal practitioner was not in attendance and had not renounced agency. The applicant did not seek to terminate his mandate and prosecute his defence on his own or through another legal practitioner. He retained the agency of the said legal practitioner who chose to disregard the order of the court to attend court. He never stated that he could not find his legal practitioner. The averments in those paragraphs are clearly untrue. Mr *Nyanoka* conceded that the applicant had lied to the court or was not candid with the court in explaining the default. That concession sealed the fate of this application. The admission that the applicant made positive falsehoods in the founding affidavit was fatal to this application.

It is trite that where the applicant has proven to be an unworthy, dishonest litigant, that should be the end of the matter. The application must be dismissed. An application founded on falsehoods cannot stand. See *Matsika & Anor* v *Chingwena & Ors* (supra) at p 10, BHUNU JA correctly outlined the law as follows:

> "[26] **These examples of the 1st applicant's shenanigans portray him as a dishonest devious person who is prepared to twist the truth in order to advance his nefarious cause. In light of his deceitful character the learned judge *a quo* cannot be faulted for holding that the 1st respondent's cause was founded on lies** and fraudulent documents. That finding is amply supported by the evidence on record. For that reason, the learned judge *a quo's* reliance on the dictum of NDOU J in *Leader Tread Zimbabwe (Pvt) Ltd* v *Smith* [HB 131/03] is apt. In that case, the learned judge observed that:
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> > "**It is trite that if a litigant has given false evidence his story will be discarded and the same adverse inference may be drawn as if he has not given evidence at all**.- see *Tumahole Bereng* v *R [1949] AC 253* and *South African Law of Evidence* IH Hoffman and DT Zeffert (3rd ed) at page 472, if he lies about a particular incident, the court may infer that there is something about it which he wishes to hide".
>
> [27] **This should really be the end of the matter as the 1st applicant has proven to be an unworthy dishonest litigant**. For the sake of completeness, I, however, feel constrained to briefly deal with his other complaint that after finding that the 1st applicant had no *locus standi* the court *a quo* ought to have struck the matter off the roll instead of dismissing it." (*my emphasis*)

A false explanation for the default is no explanation at all. It follows that the applicant, having conceded to have lied to the court, could not satisfy the requirements of an application of this nature. Equally, he cannot sustain the application for rescission of default judgment. The court is entitled in the circumstances to reject all his other evidence and deny him the relief he seeks from the same court. It would be unworthy to rely on his averments in the circumstances. I associate myself with the remarks in *Chimbandi* v *Mabel Canvas (Pvt) Ltd* (*supra*) where the Supreme Court in para(s) 17 and 18, said:

> "[17] **At the onset of argument counsel for the appellant made the inescapable fatal admission that appellant was in fact dishonest to the court *a quo* when she denied liability to the respondent. What this means is that the appellant's entire pleadings are prone to being founded on lies and deceit.**
>
> [18] Given the appellant's admitted devious and unworthy demeanour, counsel for the appellant was unable to give any coherent answer as to why the court *a quo* should have believed her on any other aspect of her defence. **It is trite that a litigant who is shown to have told a lie in court may also be considered unworthy of belief on any other contentious issues. The court *a quo's* finding in this respect is beyond reproach.**" (*my emphasis*)

I have no option but to accept that the application must fail on the basis of the attempts by the applicant to mislead the court and seek to twist the truth to advance his case. His counsel also admitted that the applicant had lied that the minor, Prosper Mukorera, was a part-owner of the property, an averment he restated in para 22(c) of his founding affidavit. There was an admission that the applicant made a 'positive falsehood' in relation to a material fact, which clearly was an attempt to deceive the court. The applicant must face the consequences. Thus, in *Global Horizon (Pvt) Ltd & Ors* v *FMC Finance (Pvt) Ltd* (*supra*) at pp 9-10, MAVANGIRA JA was very clear on the legal position in this regard when she said:

> 31. **Numerous decisions of this Court have reiterated the need for candour on the part of litigants, and more so legal practitioners whenever an indulgence is being sought from the court**. Such candour is clearly lacking in this application. In fact, a reading of the supporting affidavit by the legal practitioner, besides telling an untruth that there was timeous filing of the appeal, also evinces a "highly visible" if not deliberate effort to be very scanty on explaining what actions she took as would be expected of a legal practitioner. This is further exacerbated by her refraining from taking any action for a period of 2 months. Para 24 above literally captures almost the whole of her affidavit; in fact, the material portions of it. It is only the 2 introductory paras that have not been quoted. In para 8 she confirms that she is an officer of the court and claims that she has been candid with the court. The papers do not support her averment. In addition, she gave the second applicant an explanation that she would not confirm in her own

> affidavit. She makes reference to her error without stating what that error was, especially as the fault is being laid at the IECMS system or platform.
>
> 32. **It seems to me that the respondent's counsel's contention that this application is premised on a positive falsehood is well made and amply substantiated. There must be and in fact, there are consequences to such conduct**." (*my emphasis*)

For the sake of completeness, I will further state that Mr *Nyanoka* also conceded that there was no supporting affidavit from the applicant's erstwhile legal practitioner to explain the circumstances of the default or at least confirm the applicant's averments. Counsel was also very alive to the legal position that where blame for non-compliance with the rules of court is given to a party's legal practitioner, an affidavit from that lawyer is required. He even correctly cited as authority to that legal principle the case of *Friendship* v *Cargo Carriers Ltd & Anor*. Indeed, the law is clear that it would not be an acceptable explanation for the applicant who blames his legal practitioner for the default to fail to attach an affidavit from that legal practitioner. Thus, in *Diocesan Trustees, Diocese of Harare* v *Church of the Province of Central Africa* 2010 (1) ZLR 267 (S), at p 277F-278B MALABA DCJ (as he then was) emphasised this requirement as follows:

> "Although in argument Mr *Zhou* suggested that the failure to comply with the relevant rules was wholly attributable to the respondent's legal practitioners, there was no admission of negligence by the legal practitioner who deposed to the opposing affidavit on behalf of the respondent on 29 September. One cannot consider absolving the respondent from the consequences of lack ofdiligence committed by its legal practitioners when there is no suggestion in its papers that the "oversight" was that of the legal practitioner. **It would have been after the responsible legal practitioner had filed an affidavit admitting fault and explaining in some detail what happened, that the judge would be in a position to decide whether the respondent should not be visited with the sins of its legal practitioners. Where no factual basis for making such a distinction of culpability has been provided, the judge would have no right to draw it. It must follow that without an affidavit from the person responsible for the "oversight" admitting fault and explaining the circumstances under which he or she overlooked the rules, one is at a loss for the reason why it was found necessary to state in the opposing affidavit that an "oversight" on the part of the respondent was the cause of non-compliance**. The procedure adopted by the respondent is another example of lack of care to ensure that the rules were complied with." (*my emphasis*)

The absence of an affidavit from Mr *Kuchena* was not explained. The fact that Mr *Nyanoka* was only instructed after the default judgment does not absolve the applicant of the legal obligation to explain to the court fully and attach the affidavit of the legal practitioner blamed for the non-compliance with the rules. The circumstances also made it imperative for him to explain his role. In *United Refineries Ltd* v *The Mining Industry Pension Fund & Ors*

(*supra*) at p 3, the Supreme Court affirmed the requirement for the filing of an affidavit from the legal practitioner where default is blamed on a legal practitioner and said:

> "As the court had to consider, on the one hand, the explanation for the failure to include the information and determine therefrom the lack of *mala fides* on the part of the applicant and the attendant prejudice to the respondent on the other, **the absence of an affidavit from the legal practitioner concerned meant that the failure had not been explained**. **The court *a quo* found that where a party seeks to redress or explain a procedural omission, irregularity or wrongful conduct attributed to his legal practitioner, it was imperative that the legal practitioner concerned be requested to depose to an affidavit to outline his or her role in the conduct of the matter. The court *a quo* found that the appellant had failed to file a supporting affidavit from the maligned legal practitioner and that this was fatal to its case as he was the only person who could explain the chronology of the events and his reasons for refusing to include the defence proposed in the initial opposing affidavit.** The court found that there was no comprehensive inclusive explanation for the omission of the crucial information from the opposing affidavit.
>
> **The view of this Court is that the finding was correct**." (*my emphasis*)

There was consequently no reasonable explanation for the default. Given what transpired the previous day on 13 January 2026 when the same Mr *Kuchena*, counsel of choice for the applicant sought to delay trial and even stated on record that he was not prepared to proceed with the trial if the application for postponement was not granted, one could not safely rule out collusion by the applicant and his then counsel to delay or seek to frustrate the trial proceedings. The applicant must be visited by the sins of his legal practitioner. After all he was his own choice of a legal representative. He was prepared to fall with him and did not seek to terminate his mandate.

The conduct of the legal practitioner, in my view, was also gross and unpardonable and the sins of his errand legal practitioner must surely visit him. It is a gross act of dishonourable conduct for a legal practitioner to advise the court that he or she will appear at the appointed time, that time also being a product of the counsel's consent and a consent order and then fail to turn up without sending any apology or reason. As officers of the court, legal practitioners not only represent their clients but also owe a duty to the court. They must respect the court and all its processes. He had a duty to explain his absence to the court in a matter he was still seized with and had not renounced agency. This conduct, which was also unexplained by the applicant, who even sought to twist the truth and claimed that he had to look for his legal practitioner when he was communicating with him, would fit in the category of those cases where the court must

punish the litigants for the sins of their legal practitioners. In *Monochrome (Pvt) Ltd* v *Kehrai Investments (Pvt) Ltd & Anor* SC 83/25 BHUNU JA restated the law as follows:

> "The fault for the delay lies more with its lawyers than itself. The courts are generally loath to punish litigants for the sins of their lawyers **unless such conduct is gross and unpardonable**. The courts and the ends of justice demand that whenever possible justice be dispensed with on the merits rather than on technicalities." (*supra*)

The applicant's case was accordingly compounded by the failure to attach an affidavit from his erstwhile legal practitioner to explain that the default was not by design or willful. Mr *Nyanoka* could not distance the applicant from the conduct of his legal counsel of choice. I am not satisfied that the explanation was *bona fide* in the circumstances. I also do not find that the application for rescission is *bona fide*. It is not one intended to seek justice but simply to buy more time, given that it is also apparent that the applicant's defence on the merits is clearly unarguable or doomed to fail. While it is trite that a weak explanation maybe redeemed by strong prospects of success, strong prospects of success will not excuse a flagrant disregard of the rules. In *casu*, there is no reasonable explanation for the default, and at the same time, the application for rescission has no prospects of success at all in the circumstances.

What constitutes prospects of success was fully explained in the recent Supreme Court judgment in *Mupindu & Ors* v *Mupindu & Anor* SC 115/25 at p 7, where UCHENA JA said:

> [19] Prospects of success refer to the reasonable likelihood that an intended appeal, on being argued before the appellate court, may be decided in favour of the applicant. They are not measured by the certainty of victory but by the presence of arguable grounds which carry sufficient weight to persuade a judge that the outcome on appeal could justifiably be different. **It is not enough that the case is arguable in the abstract, the issues must be of such merit as to carry a real fighting chance which can alter the judgment of the court a quo.** The South African Supreme Court in *Smith* v *S* 2012 (1) SACR 567 (SCA) at para 17 commented that:
>
> > "What the test of reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law that a court of appeal could reasonably arrive at a conclusion different to that of the trial Court. In order to succeed, therefore, the appellant must convince this Court on proper grounds that he has prospects of success on appeal and that those prospects are not remote but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success that the case is arguable on appeal or that the case cannot be categorized as hopeless. **There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success** on appeal." (*my emphasis*)

It is apparent from the record that the matter was referred to trial before MUREMBA J on two issues, with the factual one being the first issue. The second issue of whether the defendant

could defeat the claim for *rei vindicatio* on the basis of the improvements made is well answered by the law. The main issue to resolve was simply whether the defendant had effected useful and necessary improvements on the property. It was conceded by Mr *Nyanoka* that the other points of law he raised even before me were abandoned at the pre-trial conference hearing. While in the *Muchakata* case (*supra*) it was affirmed that a point of law can be raised at anytime even for the first time on appeal, once the point is abandoned, it cannot be sought to be reargued. If litigants abandon points of law at a certain stage of proceedings, and then, when times get tough and in a bid to salvage their cases, seek to raise the same points they have raised and abandoned, litigation would be endless. There would be no finality to litigation. Once abandoned, there was no point of law for Mr *Nyanoka* to seek to raise before me.

In any case, I agree with Mr *Maromo* that the applicant sought to mischaracterise the proceedings before me as if the eviction claim was pitted against the minor child. The eviction proceedings are against the applicant, and an order is sought to evict him and all those claiming the right of occupation through him from the property. The claim is not against the minor child, and I did not see any assistance that the principle of the best interests of the child would give to the applicant's case. That he resides at the premises with a minor child who himself has no right over the property cannot assist him. He sought to mischievously hide behind the minor child. Whether he has hundreds of children he stays with does not matter as long as he, himself, as their guardian, has no right to that property and none of them have too, he cannot establish a right of retention to resist the claim for rei *vindicatio*.

It is common cause that the property is registered in the names of the respondents, with the majority undivided shares thereof held by the first and second respondents jointly. He also made false averments in his founding affidavit that the minor, Prosper Mukorera, his child, is a part-owner of the property. This positive falsehood was again repeated in the notice of motion and the certificate of urgency. When I queried if this position was factual, Mr *Nyanoka* was quick to concede that this was not true. He clearly sought to advance his case for the urgent intervention of the court and the exercise of its discretion by advancing a false narrative that the minor owns the property and cannot be evicted from his own property.

Even for the one-third share owned by the Trust, the third respondent, it is not at law considered to be owned by a beneficiary, if one accepts that the minor is one of the beneficiaries of the trust. The law of trusts is settled that the trustee is the owner of the trust property and he or she has no beneficial interest therein. See *Theron* v *Loubser* [2013] ZASCA 195 par 5. The trust assets in a discretionary family trust are not owned by the beneficiaries. The legal ownership resides with the trustees while beneficiaries only have a personal right to claim from the income of the trust as the trustees may declare in terms of the deed of trust. Thus, in *Land and Agricultural Bank of South Africa* v *Parker & Ors* 2005 (2) SA 77 (SCA) in para 10, it was stated that:

> "Except where statute provides otherwise, a trust is not a legal person. It is an accumulation of assets and liabilities. **These constitute the trust estate, which is a separate entity. But though separate, the accumulation of rights and obligations comprising the trust estate does not have legal personality**. **It vests in the trustees, and must be administered by them – and it is only through the trustees, specified as in the trust instrument, that the trust can act**. Who the trustees are, their number, how they are appointed, and under what circumstances they have power to bind the trust estate are matters defined in the trust deed, which is the trust's constitutive charter. Outside its provisions the trust estate cannot be bound." (*my emphasis*)

The applicant's argument, therefore, that the minor partly owns the property through the trust is not only fallacious but legally untenable. There was no basis, in any case, for the joinder of the minor. Whether the child was a beneficiary of her late mother's estate was not relevant to the claim for eviction before the court since the deceased, by the time of her death, had already parted with all her ownership rights in the property following the donations of all the undivided shares in the property to the first to third respondents and the registrations of the deeds of transfers thereof. It could not be said that the minor had been denied the right to be heard in the eviction proceedings, as his citation was unnecessary since he had no right over the property and derived his right to stay at the property through the applicant, who himself had no right to the property. Mr *Nyanoka* admitted that the minor had no right over the property but claimed he had an interest, which he failed to define and substantiate. Accordingly, besides that, it was conceded that the point of law was abandoned at the PTC; in any event, it was not arguable but hopeless. It was simply an act of desperation by the applicant seeking to cling to anything to avoid the claim for his eviction.

The applicant's sole defence as pleaded was predicated on what he claimed were the improvements he effected on the property. While the court is not called to weigh the evidence led and the documents before, it is required to consider the rational basis for any allegation that the defence on the merits has a realistic chance of succeeding. The prospects of success must not be remote. The *onus* was on the applicant to convince the court that he had a valid claim for improvements or an improvement lien. If one considers the record before me and the present founding affidavit, the applicant placed before the court completely nothing to show that he effected any improvements of any certain value on the property. He did not plead any specific quantum of the value of the improvements, save to generalise in para 4 of his plea that it exceeds US$38,000.00. He also did not make any counterclaim for the payment of any amount for such improvements by the owners of the property, the respondents. There is absolutely nothing upon which the court can find that he has an arguable case in that regard. It would simply be a sheer waste of the court's time for the applicant who has utterly failed to show a defence on the merits which carries some prospects of success to be allowed to re-open the case through the rescission sought.

In any case, it is trite that an improvement lien, even if established, cannot entirely defeat a claim for eviction. It is merely a dilatory plea such that the applicant would not be evicted until compensated for the improvements. The court would issue a conditional eviction once the counterclaim for any value of improvements is established. This position was further expounded in *Silonda* v *Nkomo* (*supra*) at p 30, where the Supreme Court stated as follows:

> "In *Director of Customs & Excise* v *ABSA Bank & Anor* 1998 (2) ZLR 71 (S) at 73F-74A, it was held that an improvement lien was a real lien that conferred rights of retention until the amount that is due is paid. **The holder of the lien is entitled to retain it until paid for value of the expenditure not just his expenses. Further, that equity requires that he be evicted after paying for the improvements**. See *Hales v Doverick Investments (Pvt) Ltd* 1998 (2) ZLR 235 (H) at 253F-G.
>
> It was common cause before us that the second ground of appeal ought to succeed. The court *a quo* misdirected itself in failing to make a conditional order for eviction as it had intimated in its reasons for judgment. See *Wepener v Schraader* 1903 TS 629 at 637. In the exercise of the powers reposed in this Court by s 22 (1) (b) (ix) of the Supreme Court Act, I will correct the order of the court *a quo* in this respect." (*my emphasis*)

The position, therefore, that an improvement lien provides a dilatory defence against *rei vindicatio*, and if successfully raised, the owner may not recover possession from a person who

is lawfully in possession and has a valid enrichment claim unless and until the person has been compensated is well-established. See also *Singh* v *Santam Insurance* Ltd 1997 (1) SA 291 (SCA).

In *casu*, the applicant, as alluded to above, did not make any claim in reconvention, and he did not claim any specific amount for such improvements. He also did not attach to his founding affidavit anything to show that he made those improvements, including the renovations and extensions of the property to be a double-story house, as alleged. It is trite that an application stands or falls on the averments in the founding affidavit. See *Chironga & Anor* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 14/20 at p 8, where HLATSHWAYO JCC said:

> "It is trite that an application stands or falls on the averments made in the founding affidavit. See Herbstein & van Winsen the Civil Practice of the Superior Courts in South Africa 3rd ed (hereinafter 'Herbstein &Van Winsen or the Authors') p 80 where the authors stated that:
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> > "The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits any fortifying paragraphs in his replying affidavits will be struck out."

The applicant's founding affidavit made no case for the court to find that his defence of an improvement lien is arguable or has prospects of success. One cannot avoid the conclusion that, having failed to show that his defence has a realistic chance of succeeding, his application for rescission is consequently a doomed failure. It cannot seriously detain the court.

I agree with Mr *Maromo* that the respondents' claim for the *rei vindicatio* is unassailable in the circumstances. In the applicant's plea, he also claimed to be a *bona fide* possessor. The law is settled that whether or not the possessor is *bona fide* or *mala fide* makes no difference to a claim by the owner of vindicating his property from whoever is in its possession without his consent. This was affirmed in *January* v *Maferefu* SC 14/20 at pp 5-6, where UCHENA JA had this to say:

> "The r*ei vindicatio* is a common law action in terms of which an owner of a thing is entitled to claim possession of his property from whoever is in possession of it without his consent. In *Savanhu v Hwange Colliery Company* SC 8/15, this Court held as follows:
>
> > "The *actio rei vindicatio* is an action brought by an owner of property to recover it from any person who retains possession of it without his consent. It derives from the principle that an

owner cannot be deprived of his property without his consent. As it was put in *Chetty* v *Naidoo* 1974 3 SA 13 (A)*:*

It is inherent in the nature of ownership that possession of the *res* should normally

be with the owner, and it follows that no other person may withhold it from the owner unless he is vested with some right enforceable against the owner (e.g., a right of retention or a contractual right).

According to *Gibson JTR Willes Principles of South African Law (7th ed, Juta & Co Ltd, Cape Town, 1977)* at p 203, it makes no difference whether the possessor is *bona fide* or *mala fide*, the owner of a movable may recover it from any possessor without having to compensate him, even from a possessor in good faith who gave value for it. The author further states as follows regarding the vindication of immovable property:

"In the case of land, the absolute owner of the land may claim the ejectment of any person in possession of it, and also an interdict restraining persons from continuing to trespass on it, as well as damages for loss or destruction caused by trespassers." (*my emphasis*)

Further, as I have found above, the claim that he stays with a minor child, Prosper Mukorera, cannot assist him. It is settled that equities have no place in a claim for *rei vindicatio*. The courts ruthlessly enforce the right of the owner to recover his or her property from whosoever is in its possession. MAKARAU JP (as she then was) made this clear in *Alspite Investments (Pvt) Ltd* v *Westerhoff* 2009 (2) ZLR 236 (H), where she said:

"**There are no equities in the application of the *rei vindicatio***. Thus, in applying the principle, **the court may not accept and grant pleas of mercy or for extension of possession of the property by the defendant against an owner for the convenience or comfort of the possessor once it is accepted that the plaintiff is the owner of the property and does not consent to the defendant holding it**. It is a rule or principle of law that admits no discretion on the part of the court. **It is a legal principle heavily weighted in favour of property owners against the world at large and is used to ruthlessly protect ownership**. The application of the principle conjures up in my mind the most uncomfortable image of a stern mother standing over two children fighting over a lollipop. If the child holding and licking the lollipop is not the rightful owner of the prized possession and the rightful owner cries to the mother for intervention, the mother must pluck the lollipop from the holder and restore it forthwith to the other child notwithstanding the age and size of the owner-child or the number of lollipops that the owner child may be clutching at the time. **It matters not that the possessor child may not have had a lollipop in a long time or is unlikely to have one in the foreseeable future. If the lollipop is not his or hers, he or she cannot have it."** (*my emphasis*)

The defendant can only defeat the claim for *rei vindicatio* once he establishes a right of retention. In the *January* case (*supra*) at p 7, the Supreme Court restated the four main defences to a claim for *rei vindicatio*. The court thus stated that:

"There are basically four main defences to a claim of *rei vindicatio,* which are:

(i) that the applicant is not the owner of the property in question.

(ii) that the property in question no longer exists and can no longer be identified

(iii) that the respondent's possession of such property is lawful

(iv) that the respondent is no longer in physical control of the property – See the cases of *Chetty* v *Naidoo (supra)and Residents of Joe Slovo Community* v *Thabelisha Homes* 2010 (3) SA 454 (CC)."

Given the above circumstances, I failed to find any prospects of success for the applicant's defence to the *rei vindicatio* remedy sought by the respondents. Having considered all the requirements for rescission of default judgment, it is my view that the application filed by the applicant has no reasonable prospects of success. To that extend the applicant has failed to meet one of the factors this court considers in the exercise of its discretion whether to stay execution.

As regards the issue of irreparable harm, I failed to appreciate the applicant's claim that he will suffer such harm if the order is enforced. The enforcement of the eviction order *per se* does not create any irreparable harm. The application for rescission of judgment being one without any prospects of success, it would be unwarranted for me to interfere with the respondents' right to enjoy the "fruits" of that judgment. There is no irreparable harm arising from enforcing an order of the court in circumstances where the applicant has no realistic chance of succeeding in the rescission matter. There has to be finality to litigation. The alleged denial of the right to be heard is fallacious. The attempts to create a story that the eviction is against a minor who partly owns the property cannot succeed, as the same was also based on falsehoods. The court saw through the applicant's deception.

In relation to the balance of convenience or hardship, in my view, it favours that the judgment be carried through into execution. The first to the third respondents own the property and have every right to have possession of the same or enjoy any rights arising from their ownership of the property. The continued unlawful occupation by the applicant to the prejudice of the respondents cannot be sanctioned. The first to the third respondents would suffer great hardship if this application is to be granted. They have received no value for their property from the applicant's possession of their property. The applicant seeks to perpetuate his stay there for free. The applicant does not own the property and has failed to show an arguable right to seek the protection of the law in retaining possession thereof. I agree with Mr *Maromo*'s submission that

it would be cruel to the first to the third respondents for the court to allow the applicant, who has no prospects of success in establishing a right of retention, to continue occupying the property. It will not be in the interests of justice to stay execution in the circumstances.

COSTS

It is trite that costs are a matter within the discretion of the court. The general rule is that costs shall follow the cause. There is no reason in this case to depart from that general rule. Mr *Maromo* argued that the application ought to be dismissed with costs on a legal practitioner and client scale due to the unworthy dishonest conduct of the applicant. It is settled law that costs on a legal practitioner and client scale are granted only in exceptional circumstances. The Supreme Court in *Dongo* v *Naik* & *Ors* SC 52-20 at p.11 was very clear that:

> "It is settled law that costs are at the discretion of the court. The award can only be set aside where the discretion was not exercised judiciously. It is also settled that costs on a higher scale are granted in exceptional circumstances. **The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned."**
>
> **Punitive costs are awarded in circumstances where the court sees it fit to punish a party who has abused the court process."** (*my emphasis*)

In this case, there was evidence of dishonest conduct that justifies that the applicant be mulcted with punitive costs. The applicant's counsel made crucial admissions that the applicant was not candid with the court in his explanation for the default. He also conceded that it was entirely false that the applicant's son was a part-owner of the property. In my view, these untruthful statements were made in order to obtain the relief sought at all costs. The applicant's unworthy dishonest conduct deserves censure. It is conduct that the courts frown upon. Mr *Nyanoka,* on the other hand, simply asked for mercy in his replying submissions on the issue of costs. That he did not insist on the misrepresentations does not detract from the seriousness of the dishonourable conduct. In my view, special circumstances warranting such an abominable award of costs exist.

The application was filed merely for the purposes of seeking to delay the execution of the court order. The respondents should recoup the litigation expenses needlessly incurred in these proceedings. I find costs on a legal practitioner and client scale to be proper and just in the circumstances.

DISPOSITION

The applicant failed to satisfy the requirements for stay of execution. It was not shown that an injustice would occur if the order is carried into execution. The first to the third respondents must be allowed to execute the order as it is their right to do so. There is no doubt that the respondents are the owners of the property. That was common cause, hence the narrow issues for trial related only to the improvements allegedly made by the applicant. The applicant has failed to show that he has any prospects of success in his application for rescission of judgment. He failed to show that he has a *bona fide* defence on the merits to defeat the claim for *rei vindicatio*. It is not in doubt that he is an unworthy dishonest litigant who deserves no sympathy from the court.

The respondents, as the joint owners of the property, are entitled to possession as the occupation by the applicant is clearly without their consent and without any just cause. While this court has inherent power to control its own processes, in the exercise of that discretion, it ought to consider what is just and equitable. See *Mashamhanda* (*supra*) at para 48. The justice of the case will not turn on its head if the present application is dismissed.

In the result, it is ordered that:

1. The application be and is hereby dismissed with costs on a legal practitioner and client scale.

DEMBURE J: ……..

Mahuni Gidiri Law Chambers, applicant's legal practitioners
Hogwe Nyengedza, first to third respondents' legal practitioners.